

ChartVolt Platform Defence Memorandum on Licensing Status

Analysis of the platform under (i) MiFID II / ESMA financial-services frameworks and (ii) EU member-state games-of-chance legislation, with particular reference to the payment of monetary prizes to participants.

Prepared for

Management & External Legal Counsel

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Subject platform

ChartVolt — skill-based simulated trading tournaments

Status

Draft for counsel review — not legal advice

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SECTION I

Introduction, Scope and Reservations

1.1 This memorandum sets out the regulatory position of the ChartVolt platform (the “**Platform**”) in respect of two licensing questions that a competent authority may raise: whether the Platform performs regulated investment services requiring authorisation under Directive 2014/65/EU (“**MiFID II**”) or related ESMA-supervised frameworks; and whether the Platform operates games of chance requiring a gambling licence under member-state law.

1.2 The analysis is grounded in the Platform’s actual technical implementation (verified at source-code level), the public positions of the European Securities and Markets Authority (“**ESMA**”) and national competent authorities as at the date hereof, and the established analytical tests applied to prize competitions in the European Union.

1.3 Reservation. This document is a structured position paper prepared for review by licensed counsel in each jurisdiction of operation. It is not, and must not be relied upon as, legal advice. Gambling law in particular is not harmonised at EU level and outcomes differ by member state.

Executive Summary of Conclusions

CONCLUSION 1 — NO MIFID II / FINANCIAL-SERVICES LICENCE IS REQUIRED

No financial instrument is created, distributed or intermediated. No order is received, transmitted or executed on any market. The Platform is not a counterparty to any position and has no economic exposure to trading outcomes. Live market prices are consumed exclusively as *data* to score a simulation. This is consistent with the Czech National Bank's October 2024 position that platforms remaining wholly within a simulated model do not require authorisation, and with ESMA's current supervisory posture (July 2026).

CONCLUSION 2 — NO GAMBLING LICENCE IS REQUIRED (PREDOMINANCE-OF-SKILL JURISDICTIONS)

Of the three cumulative elements of gambling — stake, prize, and chance — the element of chance is not satisfied in the manner required: every participant competes on identical virtual capital and identical market data at the same time, so external randomness is a *common-mode* input that cannot differentiate participants. Ranking is determined by relative decision quality across a mandatory series of decisions. The correct legal analogue is the fantasy-sports / esports / chess tournament, not a game of chance.

THE DECISIVE STRUCTURAL FACT

Monetary outcomes on the Platform are a **step function of ordinal rank in a fixed, pre-published prize pool**. A participant's payout does not scale with the magnitude of simulated profit, with price movement, or with any stake multiple. Maximum loss is capped at the entry fee; maximum gain is capped at the published prize. This severs the payout from both (a) derivative-style market exposure (MiFID II) and (b) stake-multiplied-by-chance mechanics (gambling law).

MANAGED EXPOSURES (SECTION X)

Four residual areas warrant counsel attention and product discipline: (1) short-duration head-to-head challenges; (2) the e-money characterisation of the credits ledger; (3) outlier "any-chance" jurisdictions; and (4) marketing terminology. None undermines the core position; each has a concrete safeguard identified in Section X.

Factual Background — How the Platform Operates

3.1 The following facts are established at source-code level and are capable of technical demonstration to any authority.

- **(A) Deposits.** Users purchase credits (1 credit = €1) exclusively through licensed payment institutions (Nuvei, Stripe, Paddle, Atlas). The Platform never receives funds outside regulated payment rails.
- **(B) Entry.** A fixed, pre-published entry fee in credits buys *access* to a tournament. Entry fees accumulate into that tournament's prize pool; the Platform's revenue is a disclosed fee that does not depend on any participant's result.
- **(C) Identical starting conditions.** Every participant receives an *identical* virtual balance (e.g. 10,000 units of notional capital) recorded on a participant ledger that is segregated from the credits wallet and has no monetary value.
- **(D) Simulation only.** Participants make simulated trading decisions scored against live market *data*. No order leaves the Platform; there is no broker, no venue connection, no execution, and no acquisition of any instrument. The price feed is read-only.
- **(E) Rank-based prizes.** At tournament end, participants are ranked by performance metrics of the virtual account (e.g. return, win rate, profit factor) subject to minimum-activity rules. Prizes are paid from the prize pool strictly by ordinal rank according to a distribution table published before entry.
- **(F) Withdrawals.** Credits (including prizes) are withdrawable in EUR through the same licensed payment institutions, subject to mandatory KYC, AML-relevant fraud monitoring, device fingerprinting and duplicate-identity detection.

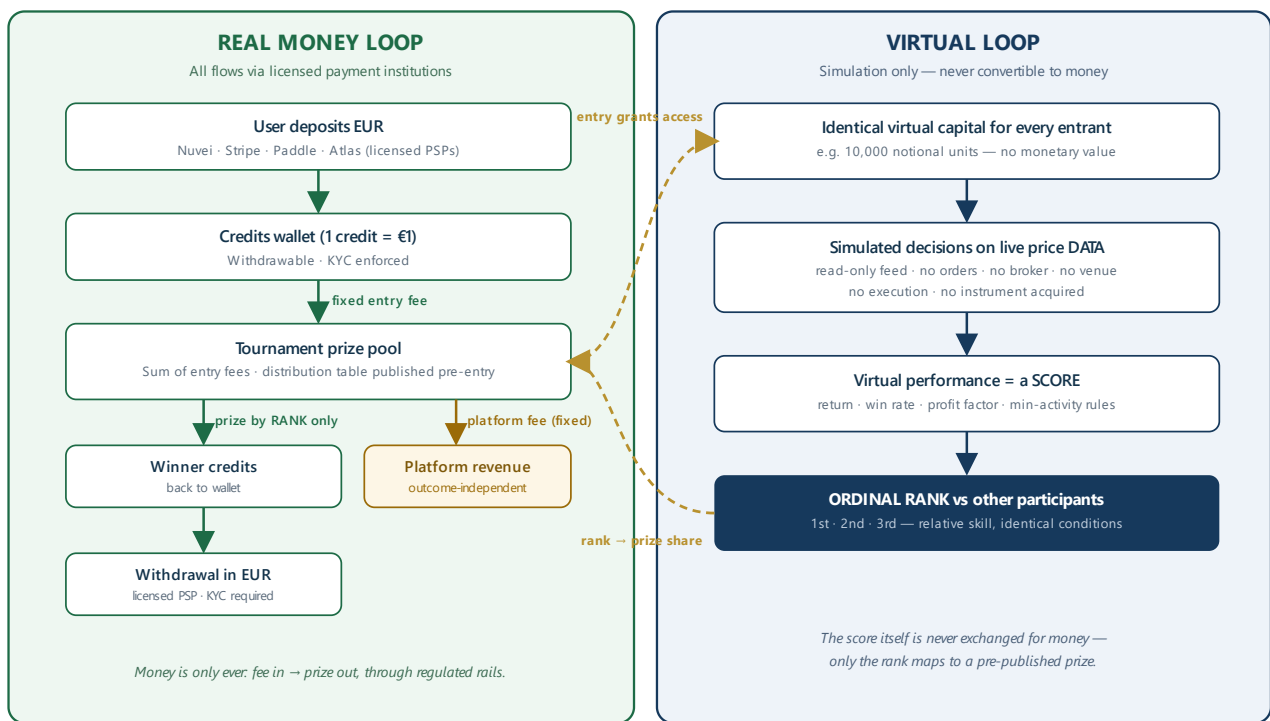


Figure 1. The two segregated loops. The virtual loop produces only a score; the real-money loop only ever moves fee-in / prize-out through licensed payment institutions.

Question 1 — Is a Financial-Services (MiFID II) Licence Required?

4.1 MiFID II authorisation attaches to the performance of investment services or activities *in relation to financial instruments* (Art. 4(1)(2) and Annex I). Both limbs must be present. Neither is.

MIFID II TRIGGER	PLATFORM REALITY (TECHNICALLY VERIFIABLE)	ENGAGED?
Financial instrument (transferable security, derivative, CFD — Annex I, Section C)	Virtual positions are database records with no contractual right to any asset, cash flow or settlement. They cannot be redeemed, transferred, assigned or settled.	NO
Reception & transmission / execution of orders	No order ever leaves the Platform. There is no broker connection, no trading venue membership, no execution infrastructure. Prices are consumed as read-only data.	NO
Dealing on own account	The Platform is not a counterparty to any position and carries zero economic exposure to participants' simulated results. Its fee is fixed and outcome-independent.	NO
Portfolio management / investment advice	None offered; no personal recommendations; no discretionary management.	NO
Safeguarding of instruments / client assets	Only EUR credits are held, moving exclusively through licensed payment institutions.	NO

The economic-substance (CFD recharacterisation) test

4.2 ESMA's public statement of 24 February 2026 (ESMA35-243228190-8024) directs firms and supervisors to assess the *economic substance* of novel products against the CFD definition: does the arrangement confer leveraged monetary exposure to the price movement of an underlying? Applied to the Platform, the answer is structurally negative:

- A CFD payout is **continuous in the price** of the underlying — twice the favourable movement yields twice the money. A Platform payout is a **step function of ordinal rank** in a fixed pool: first place receives the same published prize whether the winning virtual return was +0.5% or +50%.
- Maximum loss is the entry fee, fixed before entry; it cannot be increased by any market movement. There is no margining of money, no negative balance, no stake at market risk.
- The counterparty to the participant's monetary outcome is **the field of other entrants** (via the pool), not the operator and not the market.

Regulatory posture

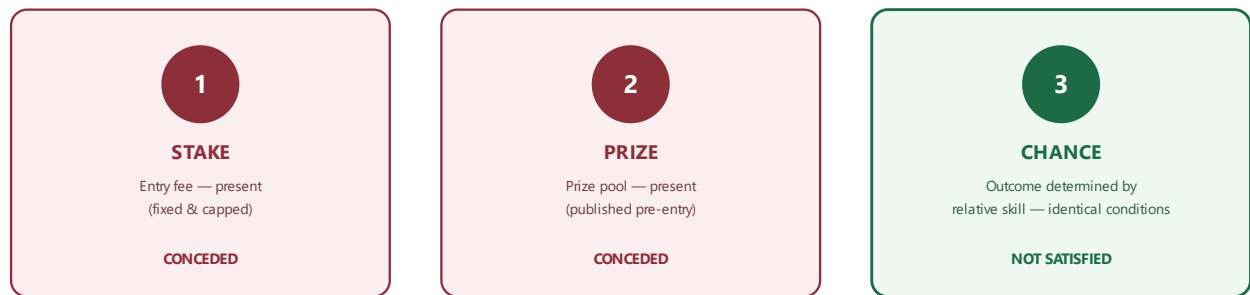
4.3 The Czech National Bank stated in October 2024 that platforms operating on demonstration/simulated accounts **do not require authorisation as regulated entities provided they remain within the simulated model**. As at July 2026, ESMA is not engaged in substantive discussions on regulating retail simulated-trading models (confirmed publicly by the chair of ESMA’s Risk Standing Committee). The Platform sits *further* from the regulatory perimeter than the profit-split “prop firm” models those statements addressed, because it pays rank-based tournament prizes rather than a percentage of simulated profit.

POSITION ON QUESTION 1

The Platform performs no investment service in relation to any financial instrument. No MiFID II or ESMA-supervised authorisation is required. The critical maintenance condition: the Platform must remain wholly within the simulated model — no order routing, no bridge to live brokerage, and no payout that scales with simulated profit.

Question 2 — Is a Gambling Licence Required?

5.1 Across EU member states, gambling regulation attaches where three elements are cumulatively present: a **stake**, a **prize**, and an outcome determined wholly or predominantly by **chance**. The Platform concedes the first two. The defence rests — soundly — on the third.



All three elements must be present. Element 3 fails — no game of chance.

Figure 2. The cumulative three-element test for games of chance.

Why chance does not determine the outcome

5.2 Randomness is common-mode, not differentiating. In a game of chance (roulette, lottery, card deals) randomness is applied *unequally* to participants and directly selects the winner. On the Platform, every participant faces the *same* market data at the *same* time with the *same* virtual capital. The exogenous uncertainty of markets moves identically for all entrants; it therefore cannot rank them. The only differentiating input is each participant’s decisions: instrument selection, timing, position sizing, leverage, stop-loss and take-profit placement, and sustained risk management.

5.3 Structural skill safeguards. Tournament rules enforce a minimum number of decisions (minimum-trade thresholds), apply disqualification standards, and rank by sustained performance metrics (return, win rate, profit factor) across the contest period — a winner must outperform the field across a series of decisions, not on a single random event.

5.4 The correct analogues. Chess opens, fantasy-sports leagues and esports tournaments all combine entry fees, prize pools and substantial exogenous uncertainty, and are treated across the EU as skill competitions falling outside games-of-chance licensing where skill predominates. Poker is treated more strictly precisely because concealed randomised information (the deal) is distributed *unequally* among players — a feature the Platform does not have: all information is public and identical.

5.5 The strictest EU regulator did not classify this model as gambling. Belgium — the only member state to ban retail CFDs outright — examined paid simulated-trading challenges (FSMA, March 2024). The FSMA issued a consumer warning describing the sector as a “shadow investment game”, but pursued no games-of-chance classification under the Belgian Gaming

Act and no licensing enforcement. Even at the most restrictive end of the EU spectrum, neither regulatory hook was found to apply.

POSITION ON QUESTION 2

In predominance-of-skill jurisdictions the Platform operates lawful prize competitions, not games of chance. The element of chance fails because identical conditions neutralise randomness as a ranking factor; outcomes are determined by relative skill across a mandated series of decisions.

The Payout Objection — Characterisation of Prize Money

6.1 The anticipated objection is: “*the operator pays participants money determined by outcomes; therefore a licence is required.*” The objection conflates the act of paying with the legal character of the payment. Paying money is not itself a licensable activity; the question is always **what the payment is**. There are only three candidate characterisations, and two fail on the Platform’s mechanics:

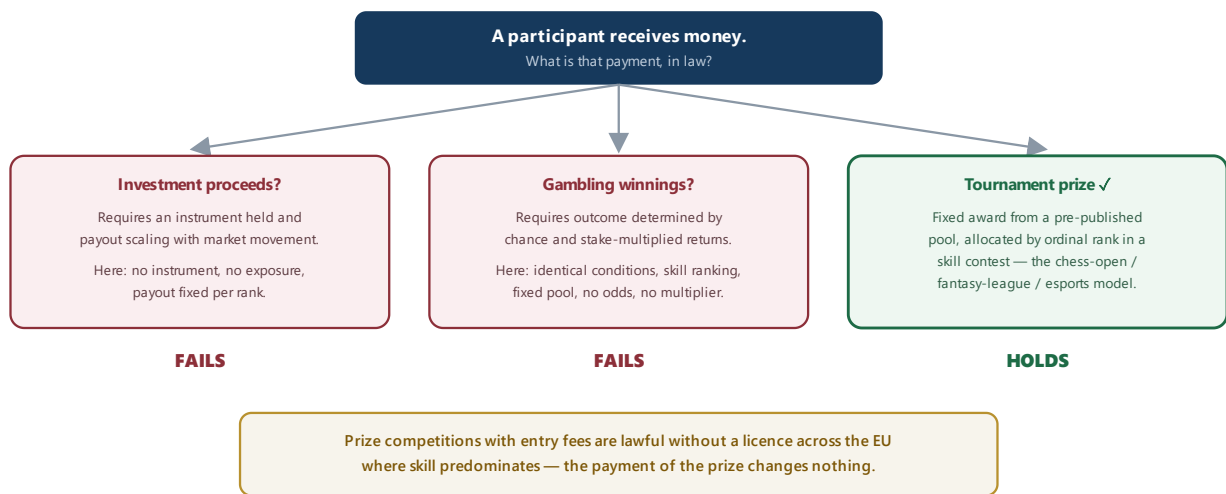


Figure 3. Characterisation of the payout: two theories fail on the mechanics; the tournament-prize characterisation holds.

6.2 Three further features reinforce the prize characterisation: (i) the payer of last resort is economically the *field of entrants* (the pool), with the operator’s fee fixed regardless of outcomes — the operator does not profit from participant losses on any position; (ii) each participant’s worst case is the loss of a known fixed fee — there is no open-ended downside as in leveraged trading, and no stake-times-odds mechanic as in betting; and (iii) the entire monetary perimeter (deposit, prize, withdrawal) is executed by authorised payment institutions with mandatory KYC and AML-relevant monitoring already in production.

SECTION VII

Regulatory Precedents and Authorities

AUTHORITY	DATE	POSITION	RELEVANCE TO PLATFORM
Czech National Bank (CNB)	Oct 2024	Platforms operating on demo/simulated accounts do not require authorisation as regulated entities, provided they remain within the simulated model.	Direct support: the Platform is wholly simulated and — unlike the profit-split firms addressed — pays rank-based prizes.
ESMA	Feb 2026	Statement ESMA35-243228190-8024: supervisors assess economic substance of novel products against the CFD definition (leveraged monetary exposure to an underlying).	The Platform passes the substance test: rank-based step-function payout, no monetary market exposure, capped fee.
ESMA / CySEC (chair, Risk Standing Committee)	Jul 2026	Retail simulated-trading is not an ESMA regulatory priority; no substantive discussions under way.	No pending EU framework contradicts the position; monitoring obligation noted.
Belgium — FSMA	Mar 2024	Consumer warning describing paid simulated-trading challenges as a “shadow investment game”; no licensing enforcement and no classification under the Belgian Gaming Act.	The strictest EU regulator found neither financial-licensing breach nor a games-of-chance classification.
Italy — CONSOB	Jul 2024	Public criticism of retail “challenge” models as “a type of finance video game”; consumer-protection framing, no licensing reclassification.	Confirms the perceived character of the activity as a game/competition, not an investment service.
Industry restructuring	2025	Leading simulated-trading operators restructured payouts and terminology (e.g. away from profit-split language) to remain clearly within the demo-model perimeter recognised by the CNB.	The Platform’s rank-based prize design already sits on the safe side of the line the industry moved toward.

DISTINGUISHING THE PLATFORM FROM “PROP FIRM” MODELS

Regulatory friction in this sector has concentrated on models that (a) pay participants a percentage of simulated profit — mimicking a derivative payoff — or (b) bridge successful participants into live brokerage arrangements. The Platform does neither: prizes are fixed rank-based awards from a peer-funded pool, and no pathway to real-market execution exists anywhere in the product.

Other Regulatory Perimeters — Payments, AML, Consumer, Data, Advertising, Tax

8.1 Beyond the two principal licensing questions, five further regulatory perimeters could be raised by an authority, bank or counterparty. Each is addressed below with the Platform’s position and, where relevant, the safeguard already in production.

A. Payment services and electronic money (PSD2 / EMD2)

8.2 The credits ledger (1 credit = €1, redeemable) is the Platform’s most substantive secondary question. The position: the Platform does not *execute payment transactions*, issue payment instruments, or acquire transactions — every movement of funds is executed by authorised payment institutions (Nuvei, Stripe, Paddle, Atlas) under their own licences. Credits function as (i) consideration for a service (tournament entry) and (ii) a prize ledger, not as a means of payment to third parties: credits can be spent only *on the Platform itself* and transferred to no other person or merchant. This materially distinguishes the ledger from e-money issued “for the purpose of making payment transactions” to parties other than the issuer (Art. 2(2) EMD2). Redemption flows back to the depositing customer via the original payment method where possible.

COUNSEL ACTION

A payments-law opinion should be obtained to confirm the characterisation in each operating jurisdiction, and to assess whether structural options (agent-of-payee arrangements, safeguarding accounts, or an EMI partnership at scale) are warranted as the ledger grows.

B. Anti-money-laundering and counter-terrorist financing (AML/D)

8.3 The Platform is not an “obliged entity” under the AML Directives: it is neither a credit/financial institution nor a “provider of gambling services” (per Sections IV–V). Nevertheless the Platform **voluntarily operates a full AML-relevant control stack**, which is both a defence-in-depth and the direct answer to bank due-diligence: mandatory KYC before any withdrawal; duplicate-identity detection across KYC documents; device fingerprinting and multi-account detection; IP intelligence (VPN / proxy / Tor / datacenter detection with configurable blocking); risk scoring with automatic restriction; withdrawal routing back to the originating payment method; and a full, reconciled transaction ledger. Closed-loop credits with capped entry fees and rank-based prizes offer very limited layering utility to a money launderer — value cannot be transferred between users.

C. Consumer protection (UCPD / Consumer Rights Directive)

8.4 Contest terms, entry fees, prize tables and eligibility rules are published before entry; maximum loss is the entry fee; contests that fail to start (e.g. minimum participants not reached) are automatically refunded in full — an implemented, audited flow, not a policy promise. Marketing must avoid earnings claims and urgency mechanics; the terminology policy in Section X applies. The 14-day withdrawal right for digital services is handled by express consent to immediate performance at entry, with the statutory exception for contracts fully performed (a completed tournament) — standard practice for paid online competitions.

D. Data protection (GDPR)

8.5 The fraud-prevention stack (device fingerprinting, IP intelligence, duplicate-KYC matching) processes personal data on the lawful basis of legitimate interest (fraud prevention — Recital 47 GDPR expressly recognises it), and KYC on legal-obligation/contract bases. Recommended hygiene: a documented DPIA covering the fingerprinting and IP-intelligence stack, retention schedules for KYC artefacts, and processor agreements with the KYC and IP-intelligence vendors. None of this affects licensing; it is raised because banks and regulators increasingly ask for it in the same breath.

E. Advertising standards and tax

8.6 Advertising: the Platform must not advertise in the style of gambling (odds, “win big”, bonus-bet mechanics) or of investment services (returns, income claims) — both would invite the exact recharacterisations rebutted in Sections IV–VI. Positioning is “skill tournament with published prizes”. **Tax:** the Platform’s revenue (its fee) is a standard service supply subject to VAT — an invoicing and VAT module is already in production; prize money is in general taxable in the hands of recipients under their domestic law, with no withholding obligation asserted for the operator (to be confirmed per jurisdiction alongside the counsel review).

Anticipated Questions from Banks, Acquirers and Payment Partners

9.1 Acquirer underwriting applies the card schemes’ own classification logic, which — like the legal analysis — turns on *mechanics*, not labels. The controlling distinction in the Visa Merchant Data Standards is between **MCC 7995** (betting and *games of chance* to win prizes of monetary value) and **MCC 5816** (Digital Goods — Games, expressly including *skilled game wagering*, e.g. daily fantasy sports). Acquirers apply a dominant-factor review: does skill or chance primarily determine the outcome, and do skilled participants demonstrably outperform unskilled participants over repeated play?

MCC	SCHEME DESCRIPTION	APPLICABILITY TO THE PLATFORM
7995	Betting, lottery, casino chips, wagers, games of chance for monetary prizes	NOT APPLICABLE — no chance-based wagering; no RNG determines outcomes; identical conditions with skill ranking (Section V)
5816	Digital Goods — Games; skilled game wagering (e.g. daily fantasy sports)	CLOSEST FIT — entry-fee skill tournaments with monetary prizes; note this MCC sits on Visa’s high-integrity-risk list, so acquirer registration and enhanced monitoring may still apply
7994	Skill games merchants (region-dependent)	ALTERNATIVE — usable in some regions unless any operating jurisdiction regulates the activity as gambling, in which case scheme rules force 7995 — hence the jurisdiction matrix and geo-blocking in Section X
6211	High-Integrity-Risk Financial Trading Platforms	NOT APPLICABLE — no financial trading of real value occurs; the trading is a simulation used solely for scoring (Section IV)

Q1 “Are you a gambling merchant?”

No. The product is a skill-based tournament (Sections III & V): identical starting conditions, no RNG-determined outcomes, ranking by sustained decision quality, prizes by ordinal rank from a pre-published pool. Skilled participants demonstrably outperform unskilled ones over repeated play — leaderboard and per-participant performance histories are available as evidence. This memorandum, and counsel opinions where obtained, are available for underwriting files.

Q2 “Are you a trading/CFD/prop-firm merchant? Those are restricted.”

No. Distinguish on three facts: (i) no customer money is ever exposed to a market — the trading is a simulation and the maximum loss is a fixed entry fee; (ii) no payout scales with simulated profit (the profit-split feature that has drawn scrutiny to prop firms is absent — prizes are fixed by rank); (iii) there is no brokerage bridge, order routing or instrument anywhere in the product. The Czech National Bank’s October 2024 position confirms wholly simulated models sit outside authorisation.

Q3 “Where is your licence?”

None is required: no financial instrument or investment service (Section IV) and no game of chance (Section V). The same answer was reached even by Belgium’s FSMA — the strictest EU regulator in this domain — which issued only a consumer warning and pursued no licensing action against comparable simulated-trading models. Jurisdiction-specific counsel confirmations can be provided.

Q4 “What is your chargeback exposure and how do you manage it?”

A dedicated chargeback-management system is in production: PSP dispute webhooks are ingested automatically; the affected account is immediately restricted; a case file is opened with full evidence (KYC identity, device fingerprint, IP history, session logs, the signed entry and the complete credit ledger); representment evidence is generated; and won/lost outcomes reconcile automatically, including credit clawback. Declined payments never credit the ledger (single-use payment sessions), and deposits map 1:1 to auditable ledger entries.

Q5 “What are your AML / source-of-funds controls?”

KYC is mandatory before any withdrawal; withdrawals route back to the originating payment method where scheme rules allow (card refund to the depositing card); duplicate-identity detection runs across KYC documents; device fingerprinting, multi-account detection and IP intelligence (VPN/proxy/Tor/ datacenter) gate entries; risk scoring can automatically restrict accounts. Credits are strictly closed-loop — value cannot move between users, which removes the layering utility that attracts abuse to wallet products.

Q6 “What exactly does the cardholder buy, and what do you pay out?”

The cardholder buys platform credits used as fixed tournament entry fees (a service, VAT invoiced). Payouts are (i) rank-based tournament prizes from pre-published pools and (ii) redemption of a customer’s own unspent balance. Nothing else leaves the platform. Prize liability is always fully funded by the pool of collected entry fees — there is no leverage, no float risk, and no open-ended liability.

Q7 “What is your refund policy?”

Published and implemented in code: contests that do not start (e.g. minimum participants not met) refund entry fees automatically and in full; cancelled contests refund all participants; voluntary deposit refunds are supported through an admin flow with credit clawback and full reconciliation. Refund and dispute data are available to the acquirer on request.

Q8 “Which MCC do you expect, and will you accept scheme registration?”

The Platform presents as MCC 5816 (skilled game wagering) or the acquirer’s preferred skill-competition classification, and accepts that scheme high-integrity-risk registration and enhanced monitoring may apply to that category — a cost and monitoring matter, not a legality one. The Platform will not accept classification under 7995, which would misstate the mechanics, and commits to geo-restricting any jurisdiction whose law treats the activity as gambling so that scheme rules never force a 7995 classification.

Residual Risk Factors and Recommended Safeguards

10.1 A credible defence anticipates the attack. The following exposures are identified candidly, each with a concrete safeguard. None disturbs the core conclusions.

#	EXPOSURE	SEVERITY	SAFEGUARD
1	Short-duration head-to-head (1v1) challenges with minimal activity thresholds may be argued to resemble wagers.	MEDIUM	Enforce higher minimum-decision thresholds and minimum durations for 1v1 formats; present head-to-head play as a skill duel with full statistics.
2	Credits ledger (1:1 EUR, redeemable) may attract e-money (EMD2) analysis independent of both licences discussed.	MEDIUM	Obtain a payments-law opinion; all issuance/redemption already flows through authorised payment institutions; consider structural options (agent-of-payee, limited-network) with counsel.
3	A minority of jurisdictions apply an “any element of chance” test rather than predominance of skill.	MEDIUM	Jurisdiction-by-jurisdiction access controls (geo-restriction capability exists in the Platform’s IP-intelligence layer); maintain a jurisdiction matrix with counsel.
4	Marketing language (“bet”, “win big”, “jackpot”) could invite gambling characterisation regardless of mechanics.	LOW-MED	Terminology policy: compete, skill, rank, tournament, prize. Periodic marketing audit against the policy.
5	Any future bridge to real-market execution, or any payout scaling with simulated profit, would collapse both defences.	CRITICAL	Architectural red line: read-only price data; rank-based prizes only; no brokerage integration; product-governance sign-off required for any change touching the payout formula.

STANDING GOVERNANCE RECOMMENDATION

Maintain this memorandum as a living document. Any change to (i) prize distribution mechanics, (ii) contest duration/minimum-activity rules, (iii) the credits ledger, or (iv) the introduction of new game formats should be re-tested against Sections IV–VI before release. Pure games of chance introduced as contest formats would reverse the Section V conclusion for those formats.

Concluding Statement of Position

ChartVolt operates skill-based simulated-trading tournaments. Participants pay a fixed, capped entry fee for access to a competition in which every participant receives an identical virtual balance and identical live market data, and is ranked solely on the relative quality of their decisions. No financial instrument is created; no order is executed on any market; the operator bears no exposure to trading outcomes; and monetary prizes are fixed, rank-based awards from a transparent, pre-published prize pool — not returns on investment, and not stakes multiplied by chance. All funds move exclusively through licensed payment institutions with mandatory know-your-customer verification.

Accordingly, the Platform falls outside the scope of MiFID II and ESMA-supervised authorisation — no instrument, no investment service, consistent with the Czech National Bank's October 2024 position on wholly simulated models and with ESMA's current supervisory posture — and outside member-state games-of-chance legislation in predominance-of-skill jurisdictions, consistent with the treatment of fantasy-sports, esports and chess competitions, and with the absence of any gaming-law classification of comparable models even by Belgium, the European Union's most restrictive financial regulator in this domain.

Conditions on which this position depends

- The Platform remains wholly within the simulated model — no order routing, no brokerage bridge.
- Prizes remain fixed, rank-based awards from pre-published pools — never a function of simulated profit magnitude.
- Entry fees remain fixed and capped; participants can never lose more than the fee.
- All money movement remains within authorised payment institutions with KYC/AML controls.
- Contest rules preserve the skill profile: identical starting conditions, minimum-activity thresholds, sustained-performance ranking.

Reservations

This memorandum is a regulatory position paper prepared from the Platform's verified technical implementation and publicly available regulatory statements as at 11 August 2026. It does not constitute legal advice and does not create a lawyer–client relationship. Gambling law is not harmonised in the European Union and member-state analysis is required before reliance in any specific jurisdiction. The positions of ESMA and national competent authorities may change; the monitoring obligation described in Section X applies.

